

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3299

By: Hays of the House

and

7 **Coleman** of the Senate

8
9 COMMITTEE SUBSTITUTE

10 An Act relating to crimes and punishments; making
11 certain acts unlawful; providing penalties; providing
12 for civil damages; providing exceptions; directing
13 certain entities to obtain attestations from content
14 creators; requiring retention of attestations for
15 certain period of time; defining terms; providing for
16 codification; and declaring an emergency.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1629 of Title 21, unless there
20 is created a duplication in numbering, reads as follows:

21 A. It shall be unlawful for any person to create and
22 disseminate a digitization or synthetic media depicting the name,
23 image, voice, or likeness of another person without his or her
24 written consent with the intent to cause emotional, financial,
 physical, or reputational harm.

1 1. Any person who violates the provisions of this subsection
2 shall, upon conviction, be guilty of a misdemeanor punishable by a
3 fine not to exceed One Thousand Dollars (\$1,000.00), or by
4 imprisonment in the county jail for a term not to exceed one (1)
5 year, or by both such fine and imprisonment.

6 2. A violation of this subsection shall be a felony if:

7 a. the offense results in financial harm to the victim
8 exceeding Twenty-five Thousand Dollars (\$25,000.00),
9 or

10 b. the digitized or synthetic media is used for the
11 purpose of extortion, coercion, blackmail, or to
12 obtain anything of value through threat or
13 intimidation.

14 Upon conviction, the person shall be punished by imprisonment in the
15 custody of the Department of Corrections for a term not exceeding
16 five (5) years, or by a fine not to exceed Ten Thousand Dollars
17 (\$10,000.00), or by both such fine and imprisonment.

18 3. Each use or dissemination of digitized or synthetic media
19 may constitute a separate offense.

20 4. In addition, such person shall be liable for the amount of
21 damages, losses and expenses, including court costs and attorney
22 fees incurred for the unlawful dissemination of digitized or
23 synthetic content, which may be recovered in a civil action.

1 5. It shall be lawful and there shall be no liability for the
2 creation and dissemination of a digitization or synthetic media for
3 which the sole purpose is for news reporting, commentary, satire or
4 parody.

5 B. 1. Not less than forty-five (45) days preceding a primary,
6 general, or special election, digitization or synthetic media used
7 in any political advertising or television commercial depicting the
8 name, image, voice, or likeness of a political candidate shall
9 include a disclosure that the advertisement or television commercial
10 contains digitized or synthetic content. Any person who violates
11 the provisions of this subsection shall, upon conviction, be guilty
12 of a misdemeanor punishable by imprisonment in the county jail for a
13 term of not more than one (1) year and by a fine of Two Thousand
14 Five Hundred Dollars (\$2,500.00). In addition, such person shall be
15 liable for the amount of damages, losses and expenses, including
16 court costs and attorney fees incurred for the unlawful
17 dissemination of digitized or synthetic content, which may be
18 recovered in a civil action.

19 2. Any media advertising agency shall require all content
20 creators to sign an attestation certifying whether the advertisement
21 contains digitized or synthetically altered content, as defined in
22 subsection C of this section, when such digitized or synthetically
23 altered content is used in the creation of the advertisement. The
24 attestation shall be retained by the media advertising agency for a

1 period of not less than twenty-four (24) months and shall be made
2 available upon request to the appropriate enforcement authority,

3 C. For purposes of this act:

4 1. "Digitization" or "synthetic media" means any still image,
5 video, or audio recording that has been generated or materially
6 altered using digital or computational techniques so as to falsely
7 appear authentic, and in a manner that a reasonable person would
8 believe depicts a real person engaging in speech or conduct that did
9 not occur; and

10 2. "Disseminate" means to give, provide, lend, deliver, mail,
11 send, forward, transfer, or transmit, electronically or otherwise,
12 to another person.

13 SECTION 2. It being immediately necessary for the preservation
14 of the public peace, health or safety, an emergency is hereby
15 declared to exist, by reason whereof this act shall take effect and
16 be in full force from and after its passage and approval.

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18 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
19 OVERSIGHT, dated 02/26/2026 - DO PASS, As Amended and Coauthored.
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